

25NWLC31353 25NWLC31353

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Case Number: 25NWLC31353 Hearing Date: September 28, 2026 Dept: 26

TENTATIVE RULING:

Defendants Blackseries Campers, Inc.
and Hongwei Qiu's Motion
for Relief from Entry of Default is denied.

Analysis:

On June 13, 2025, Plaintiff Wang IP Law Group, PC ("Plaintiff") filed this action against Defendants Blackseries Campers, Inc. ("Defendant Blackseries Campers") and Hongwei Qiu ("Defendant Qiu"). On December 16, 2025, the Court granted Plaintiff's Application to Serve the Secretary of State. Proof of Service upon the Secretary of State was filed on December 31, 2025. Plaintiff filed Proof of Personal Service upon Defendant Qiu on March 4, 2026.

Following the lack of any responsive pleading by Defendants, the Court entered their default on April 7, 2026. Defendants filed the instant Motion for Relief from Entry of Default on August 19, 2026. Plaintiff filed an opposition on September 10, 2026 and Defendants replied on September 21, 2026.

Discussion

Defendants move to vacate the default and default judgment pursuant to Code of Civil Procedure section 473, subdivision (b). Under Code of Civil Procedure, section 473, subdivision (b), an application for relief must be made within a reasonable time, no more than six months after entry of the order from which

relief is sought, and must be accompanied by an affidavit of fault attesting to the moving party's or counsel's mistake, inadvertence, surprise or neglect. (Code Civ. Proc., § 473, subd. (b); English v. IKON Business Solutions (2001) 94 Cal.App.4th 130, 143.) The six-month deadline is jurisdictional and not subject to tolling. (Manson, Iver & York v. Black (2009) 176 Cal.App.4th 36, 42.)

The Motion must also be accompanied by a copy of Defendants' proposed response to the action.

Attached to the Motion is a copy of Defendant Blackseries Campers' proposed Answer to the Complaint, and a copy of Defendant Qiu's proposed Demurrer to the Complaint. (Motion, Exhs. A and B.)

Improper Service

Defendants argue that the defaults were due to inadvertence, surprise, and excusable neglect because the service of summons and complaint was not properly effected.

Defendant Blackseries Campers

The proof of service of the Summons and Complaint with respect to Defendant Blackseries Campers states that it was personally served by delivery of the papers to Greg Scarborough / Deputy Secretary of State Authorized to Accept. (Proof of Service, filed 12/31/25, ¶¶3-5.) The proof of service is attested to by a registered process server. (Id. at ¶7.) Therefore, it is entitled to a rebuttable presumption affecting the burden of producing evidence of the facts stated in the return. (Cal. Evid. Code, § 647; see American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390.)

Defendants' Motion is supported by the declaration of Defendant Qiu, the CEO of Defendant Blackseries Campers, as well as its agent for service of process. (Motion, Qiu Decl., ¶1.) Defendant Qiu denies that he was ever being served with the Summons and Complaint. (Id. at ¶7.) Defendant Qiu declares that because Defendant Blackseries Campers was being sued in other matters, on or about March 1, 2026, he searched the Los Angeles Superior Court website and discovered the instant action. (Ibid.) Defendant Qiu then arranged a

meeting that month with Plaintiff's counsel, Tommy SF Wang, during which they discussed arbitration of the attorney's fees dispute. (Ibid.) After the meeting with Plaintiff's counsel, he expected to receive notice of the arbitration proceedings and when he did not, he again looked at the Court website to see if the action was pending. (Id. at ¶¶8-9.) Upon seeing that it was, Defendant Qiu hired counsel. (Ibid.)

The Court has no basis to find that service on Defendant Blackseries Campers was ineffective. The Motion does not dispute that service of the Summons and Complaint upon Defendant Blackseries Campers was accomplished via the California Secretary of State, nor does the Defendant Qiu's declaration address that service. Under Corporations Code section 1702, "Upon the receipt of any such copy of process and the fee therefor, the Secretary of State shall give notice of the service of the process to the corporation at its principal office, by forwarding to such office, by registered mail with request for return receipt, the copy of the process or, if the records of the Secretary of State do not disclose an address for its principal office, by forwarding such copy in the same manner to the last designated agent for service of process who has not resigned." (Corps. Code, § 1702, subd. (b).)

The Motion does not explain how service by the Secretary of State was connected to any mistake or inadvertence on Defendant Blackseries' part that would excuse their default. In reply, Defendants argue that because Plaintiff sent its process server to an address it knew was no longer good—19051 East Walnut Drive South—their lack of notice cannot be attributed to their neglect and should be attributed to Plaintiff's improper choices. This is inaccurate. Plaintiff ultimately served Defendant Blackseries Campers through service on the Secretary of State. Its prior attempts at service at 19051 East Walnut Drive South are not relevant.

Similarly, Defendant also argues that the Notice of Entry of Default was sent to an address that Plaintiff "knew had been abandoned." (Reply, at p.4.) That argument does not excuse Defendants' failure to timely respond to the Complaint after service. It may pertain to the timeliness of the motion under §473(b), but that is not contested.

Defendant Qui

The proof of service of the

Summons and Complaint with respect to Defendant Qiu states that it was personally served by delivery of the papers to Defendant Qiu on March 3, 2026, at 18645 E. Gale Ave., Suite 205 City of Industry CA 91748. (Proof of Service, filed 03/04/26, ¶¶3-5.) The proof of service is not attested to by a registered process server. (Id. at ¶7.) Therefore, it is not entitled to a rebuttable presumption affecting the burden of producing evidence of the facts stated in the return. (Cal. Evid. Code, § 647; see American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390.)

As

discussed above, Defendant Qiu declares that he attended a meeting with Plaintiff's counsel on March 3, 2026, but was never served with the Summons and Complaint. This places the burden of demonstrating service upon Plaintiff.

Plaintiff's

counsel attests that Defendant Qiu was served at their meeting on March 3, 2026. (Opp., Wang Decl., ¶7.) Plaintiff also points to a WeChat message Defendant Qiu sent to Plaintiff's counsel requesting to meet to discuss the lawsuit, as well as a message sent the day after the meeting stating that Defendant Qiu reviewed the Complaint and hoped to resolve the dispute without unnecessary litigation costs. (Id. at Exh. 4.) Plaintiff's counsel responded right away that they would "continue to litigate this matter to its fullest extent." (Ibid.) Plaintiff's counsel also stated that Defendant Qiu had indicated he was represented by counsel and that defense counsel should contact Plaintiff's counsel's office directly. (Ibid.)

These

messages credibly demonstrate that Defendant Qiu was served at the meeting on March 3, 2026, and was made aware of Plaintiff's intention to continue litigating the action, regardless of any discussion regarding mandatory fee arbitration. Defendant Qiu argues that "having invoked fee arbitration, Mr. Qiu expected to receive notice of arbitration proceedings." (Qui Decl., ¶9.) Even if that was his belief, he inexplicably waited more than a month while he knew that a Complaint had been filed – from March 6 to April 16 – to even send a follow-up email, and in the meanwhile, did nothing to respond to the Complaint. This was not the conduct of a reasonably prudent person and does not justify vacating default.

Defendants

argue for the first time in Reply, that Plaintiff obtained default "by stealth"

because Plaintiff entered Defendants default after talking to Defendant Qiu in early March. The application of this principle is less clear where the defendant is not represented. (See *Fasuyi v. Permatex, Inc.*, (2008) 167 Cal. App. 4th 681, 701 (referring “professional discourtesy to opposing counsel”). Moreover, here, Plaintiff gave Defendants notice on March 4, 2026, that it intended to “continue to litigate this matter to its fullest extent.” The Court does not find that default was taken by stealth.

Conclusion

Based on the foregoing, Defendants Blackseries Campers, Inc. and Hongwei Qiu’s Motion for Relief from Entry of Default is denied.

Judicial Assistant to give notice.